

C-DAC Internship Scheme

NON DISCLOSURE AGREEMENT

I understand that during the course of my Internship with C-DAC, C-DAC may disclose or I may come in contact with "Proprietary Information" disclosing C-DAC's confidential information and intellectual property (including, without limitation, computer programs, and names and expertise of employees and consultants, know-how, formulas, processes, ideas, inventions (whether patentable or not) schematics and other technical, business, financial, customer and product development plans, forecasts, strategies and information), which to the extent previously, presently, or subsequently disclosed to me is hereinafter referred to as "Proprietary Information" of C-DAC.

I also understand that proprietary information of C-DAC includes not only information disclosed by C-DAC but also information developed or learned by me during the course of my employment with C-DAC. Proprietary Information of C-DAC includes all information which has or could have commercial value or other utility in the business in which C-DAC is engaged or contemplates engaging or the unauthorized disclosure of which could be detrimental to the interest of C-DAC whether or not such information is identified as 'Confidential' by C-DAC. By example all information concerning databases, source code, object code, assemblers, generators, compilers, subroutine libraries and other computer programmes, products, processes, formulas, trade secrets, innovations, inventions, discoveries, improvements, techniques research or development and test results, specifications, data, know-how formats, marketing plans, business plans, strategies, forecasts, unpublished financial statements, budgets, projections and customer and supplier identities, characteristics and agreements, and any such information from the collaborators, associates, business partners, customers or any other third party, received by C-DAC or by anyone on behalf of C-DAC, are proprietary.

1. I hereby undertake to maintain the strictest secrecy and confidentiality regarding the CDAC affairs and the affairs of its constituents and shall not divulge, directly or indirectly, any financial, technical, marketing, R&D or any other information of proprietary or a confidential nature to any outside person unless compelled to do so by judicial or other statutory authority unless instructed to do so by a superior officer in discharge of my duties.
2. I further agree to the following:
 - a. To hold the Proprietary Information of C-DAC in confidence and to take reasonable precautions to protect such Proprietary Information of C-DAC.
 - b. Not to divulge any such Proprietary Information of C-DAC or any information derived there from to any third person.
 - c. Not to make any use whatsoever of such Proprietary Information of C-DAC at any time except for the purpose of authorized evaluation internally
 - d. Not to copy or reverse engineer any such Proprietary Information of C-DAC in an unauthorized manner.
3. **Return of Proprietary Information.** In the event of my leaving the services of C-DAC, I undertake to immediately return to C-DAC all Proprietary Information and all documents

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or media containing any such Proprietary Information of C-DAC and any and all copies or extracts thereof.

4. I acknowledge and agree that due to the unique nature of the Disclosing Party's Proprietary and/or Confidential Information, there can be no adequate remedy at law or any breach of its obligations hereunder, that any such breach may result in irreparable harm to the C-DAC, and therefore, that upon any such breach or any threat thereof, the C-DAC shall be entitled to appropriate equitable relief in addition to whatever remedies it might have at law and I hereby indemnify the C-DAC from any loss or harm, including, without limitation, attorney's fees in connection with any breach or enforcement of obligations hereunder or the unauthorized use or release of any such Proprietary and / or Confidential Information. No waiver or modification of this Agreement will be binding upon either party unless made in writing and signed by a duly authorized representative of both parties and no failure or delay in enforcing any right will be deemed a waiver.
5. This Internship shall be construed as to its fair meaning and not strictly for or against other party.

In witness whereof, I have signed this undertaking as of the _____ day of _____

Signature: _____

Name : _____

S/O : _____

Address: _____

Witness:

Signature: _____

Name : _____

S/O : _____

Address : _____

Signed in the presence of

Manager (HRD)
C-DAC, Hyderabad